

JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT

Civil Revision No.364-D of 2010

Zia ud Din etc.
Versus
Malik Humayun Irfan etc.

Civil Revision No.531 of 2009

Malik Aamir Ali Khan
Versus
Malik Humayun Irfan etc.

Date of hearing:	27.09.2022
Petitioners by:-	Mr. Muhammad Ilyas Sheikh, Advocate in CR No.364-D of 2010. Sheikh Zameer Hussain, Advocate in CR No.531 of 2009.
Respondents by:	Malik Itaat Hussain Awan, Advocate.

SADAQAT ALI KHAN, J. Petitioners have filed titled civil revisions against the impugned judgments and decrees of learned Courts below which are being decided through this single judgment.

2. Heard. Record perused.

3. Decree is defined in Section 2 Sub-Clause (2) of the Civil Procedure Code, 1908 (“**CPC**”) which is hereby reproduced: -

“(2) “decree” means the formal expression of an adjudication which, so far as regards the Court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit and may be either

preliminary or final. It shall be deemed to include the rejection of a plaint [the determination of any question within section 144, and an order under rule 60, 98, 99, 101 or 103 of Order XXI] but shall not include—

- (a) any adjudication from which an appeal lies as an appeal from an order, or
- (b) any order of dismissal for default.

Explanation.— A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of.

It is final when such adjudication completely disposes of the suit. It may be partly preliminary and partly final.”

4. Preliminary decree is passed in a partition suit relating to immovable property in view of Order XX Rule 18 sub-rules (1) and (2) CPC which is hereby reproduced:-

**“ORDER XX
JUDGMENT AND DECREE**

“18. *Decree in suit for partition of property or separate possession of a share therein.*--Where the Court passes a decree for the partition of property or for the separate possession of a share therein, then,--

(1) If and in so far as the decree relates to an estate assessed to the payment of revenue to the Government, the decree shall declare the rights of the several parties interested in the property, but shall direct such partition or separation to be made by the Collector, or any gazetted subordinate of the Collector deputed by him in this behalf, in accordance with such declaration and with the provisions of section 54.

(2) If and in so far as such decree relates to any other immovable property or to movable property, the Court may, if the partition or separation cannot be conveniently made without further inquiry, pass a preliminary decree declaring the rights of the several parties interested in the property and giving such further directions as may be required.”

Sub-rule 2 reproduced above relates to a partition of movable or immovable property not covered by sub-rule (1) reproduced above, as in present case, suit property having some construction over it has lost its agricultural status.

5. Above provisions of law show that preliminary decree in partition suit of immovable property determines the rights/shares of as many parties as interested in the

property. However, the question, as to whether a property is joint one, is to be determined prior to preliminary decree. A preliminary decree only comes out as a consequence of determination of substantive rights of the parties. The Court while passing preliminary decree after determination of right and share of each party in a partition suit of immovable property appoints local commission to prepare the mode of partition/divide the property into as many shares as may be directed by the order under which the commission was issued, and shall allot such shares to the parties, and may, if authorized thereto by the said order. For ease, relevant Order XXVI Rule 14 CPC is hereby reproduced: -

**“ORDER XXVI
COMMISSIONS**

Commissions to Examine Witnesses

14. Procedure of Commissioner.—(1) The Commissioner shall, after such inquiry as may be necessary, divide the property into as many shares as may be directed by the order under which the commissioner was issued, and shall allot such shares to the parties, and may, if authorized thereto by the said order, award sums to be paid for the purpose of equalizing the value of the shares.

(2) The Commissioner shall then prepare and sign a report or the Commissioners (where the commission was issued to more than one person and they cannot agree) shall prepare and sign separate reports appointing the share of each party and distinguishing each share (if so directed by the said order) by metes and bounds. Such report or reports shall be annexed to the commission and transmitted to the Court; and the Court, after hearing any objections which the parties may make to the report or reports, shall confirm, vary or set aside the same.

(3) Where the Court confirms or varies the report or reports it shall pass a decree in accordance with the same as confirmed or varied; but where the Court sets aside the report or reports it shall either issue a new commission or make such other as it shall think fit.”

Local Commission has no power to determine the right/share of any party to suit for partition of immovable property, it is appointed only to prepare the mode of partition at the spot in view of the shares determined by the Court in preliminary decree. The local commission

cannot assume the role of the Court, rather only can propose the allotment of specified share to the parties determined in preliminary decree. In present case mode of partition was prepared on the basis of preliminary decree wherein shares of the parties have not been determined, to be given during mode of partition, such mode of partition is not sustainable. Local commission has not appeared in support of its report which was tendered as "Mark-C". "*Naqsha Jeem*" was also prepared in this case illegally by the local commission which is prepared by the revenue official i.e "*Girdawar*", on the direction of Assistant Collector/Revenue Officer after acceptance of application for partition of joint agricultural land and was tendered as "Mark-D". The law is settled by now that the document, which has not been produced and proved in evidence but only marked, cannot be taken into account as a legal evidence of fact by the Courts.

6. In the present case, suit filed by Malik Humayun Irfan plaintiff (respondent) for possession through partition of land measuring 1-Kanal 13-Marlas out of land measuring 18-Kanals pertaining to Khasra No.5090, Khatoni No.1435, Khewat No.551 situated within the revenue estate of Pindi Gheb along with four old shops, one store, three havelis and four new shops, detail of which is mentioned in the headnote of amended plaint, was preliminary decreed vide judgment and decree dated 02.10.2007, perusal of which shows that learned trial Court in any manner has not determined the right/share of each party to partition suit of immovable property. Evidence of the parties has not been recorded and documentary evidence has also not been produced. Shares of the parties are also not mentioned in the plaint

as well as in the written statements. Such preliminary decree without determination of the shares of the parties being defective one is neither sustainable nor executable. The law is settled by now that when basic order/judgment/decreed is found illegal or void then the entire superstructure built on it falls on the ground automatically.

7. Preliminary decree under challenge is ex-parte to the extent of the petitioners (defendants) in Civil Revision No.364-D of 2010 who have challenged the same on 10.01.2008 by filing application for setting-aside ex-parte proceedings dated 13.09.2007 and judgment and decree dated 02.10.2007 stating therein that on 04.01.2008 they came to know about the proceedings of this case which is within 30-days of limitation period as mentioned in Article 164 of Limitation Act, 1908 ("**Act**") wherein it is specifically mentioned that time for filing of application to set-aside a decree passed ex-parte is 30-days from date of decree or where the summons were not duly served as in present case when the applicant has knowledge of the decree. This application was contested by Malik Humayun Irfan plaintiff/respondent by submitting written reply. Learned trial Court dismissed this application on flimsy grounds while passing the final judgment and decree dated 04.02.2008 without deciding it separately. Appeal/appeals filed by the petitioners in both the Civil Revisions met the same fate. Presence of petitioners in Civil Revision No.364-D of 2010 is not marked in attendance sheet issued by local commission. The documents annexed with the judicial file do not show that the petitioners (defendants) in Civil Revision No.364-D of 2010 ever had knowledge of pendency of the suit prior to 04.01.2008. On 07.12.2006 suit was filed. Petitioners

in Civil Revision No.364-D of 2010 along with other defendants were summoned for 21.12.2006 through registered post and process agency. Summons through registered post were issued on 09.12.2006 for the attendance of petitioners of Civil Revision No.364-D of 2010 (defendants No.5,6 and 14) at the address of Pindi Gheb, which were returned unserved, three original envelopes and acknowledgment due are available on file. Summons issued on 07.12.2006 for the attendance of petitioners (defendants No.5,6 and 14) for 21.12.2006 available on judicial file show that petitioner No.1 (defendant No.5) and petitioner No.2 (defendant No.6) are residing at Rawalpindi whereas petitioner No.3 (defendant No.14) at Lahore. It is important to note here that before 21.12.2006 amended plaint with the order of the Court has been filed. On 21.12.2006 in view of report made by the process server at back of summons issued to petitioners (defendants No.5,6 and 14) that they were not residing at the addresses given by the plaintiff in the plaint, rather were residing at Rawalpindi and Lahore, it was ordered for submission of their correct addresses on 12.01.2007 i.e next date of hearing, on this date, again request for amendment in the plaint was made, case was adjourned for 26.01.2007, on said date, the amended plaint was submitted but case was not adjourned for summoning of petitioners (defendants No.5,6 and 14), rather was adjourned to 09.02.2007 for arguments on application for temporary injunction/amendment of the plaint. On 09.02.2007 again case was adjourned on the request of parties appearing therein for 14.02.2007. On this date, it was again adjourned for arguments i.e 16.02.2007. On 16.02.2007, arguments were heard and matter was adjourned for order i.e 23.02.2007, which was again adjourned to 02.03.2007, 09.03.2007, 13.03.2007 and 15.03.2007. On 15.03.2007 application

for amendment in plaint was accepted with the direction to submit amended plaint on 30.03.2007. On this date second time petitioners (defendants No.5,6 and 14) were summoned through registered post and process agency for 19.04.2007. On this date, original envelope of registered post along with acknowledgement statedly posted to petitioners (defendants No.5,6 and 14) is not available on judicial file. Summons were received back with report that petitioners (defendants No.5,6 and 14) were residing at the addresses different from the addresses mentioned in the plaint. Amended plaint dated 30.03.2007 shows that new addresses of petitioners (defendants No.5,6 and 14) were added. On the next dates i.e 03.05.2007, 31.05.2007, 27.06.2007 and 10.07.2007 statedly summons were issued to the petitioners (defendants No.5,6 and 14) for their attendance but did not receive back. Receipts of registered post available on judicial file of Civil Court show that on 03.04.2007 summons through registered post were issued to petitioners (defendants No.5,6 and 14) but same did not receive back, thereafter, on 20.07.2007 substituted mode i.e summoning of petitioners (defendants No.5,6 and 14) was ordered through publication in daily newspaper "DIN", which is not a famous newspaper, for 13.09.2007 on which date petitioners (defendants No.5,6 and 14) were proceeded ex-parte. It is important to note here that learned Civil Court has not recorded the statement of postman to satisfy itself that petitioners (defendants No.5,6 and 14) were intentionally avoiding service. Likewise, statement of process server has also not been recorded to ensure that after espousing all due and reasonable diligence, he cannot find out the petitioners and there is no person on whom service can be made and he has affixed a copy of the notice on the outer door or some other conspicuous part of the house and returned the

original to the Court with such report which is the mandate of the scheme referred in Order V of the CPC. Substituted mode of service (publication in newspaper) could only be issued, if all other provided modes were availed of and it was proved that either defendant refused or avoided to receive the process, but service through substituted mode (publication in newspaper) could not be ordered merely because the defendant was resident of different district or relative of the plaintiff.

8. It is important to note here that petitioner No.3 in Civil Revision No.364-D of 2010 was neither proceeded ex-parte nor publication in daily "DIN" has been made in this respect.

9. Malik Humayun Irfan plaintiff (respondent No.1 in Civil Revision No.364-D of 2010) filed suit for partition to separate his share of 1-Kanal 13-Marlas but local commission has proposed to give him 4-Kanals 14-Marlas in Khasra No.5090/6 along with others illegally.

10. The argument of learned counsel for the petitioner in Civil Revision No.531 of 2009 that frontage has not been given to the petitioner according to his share and no formula has been devised by the local commission in this respect, has substance.

11. The argument of learned counsel for Malik Humayun Irfan plaintiff (respondent) that Civil Revision No.364-D of 2010 is time-barred, has no substance. Perusal of record shows that judgment and decree of appellate Court were passed on 16.04.2009, Civil Revision No.364-D of 2010 was filed on 16.07.2009 and was returned to the petitioners (defendants No.5,6 and 14) on 29.04.2010 for removal of objections which was resubmitted on the same day after removal of the

objections which is mentioned in the report submitted by the office available on the file. Reliance is placed on para 25 of the judgment reported at **(PLD 2020 SC 736)** "Asad Ali and 9 others Vs. The Bank of Punjab and others", which is reproduced:-

"While going through *Sabran Bi's* case, we notice that distinction has been drawn between a situation where after raising of objections by the-office the petitioner does not receive back the file and a situation where the petitioner receives back the file. The cases cited in which the petitioner had received back the file after raising of objections by the office and had not returned the same within the time allocated by the office and which were therefore held to be time-barred, were held to be distinguishable from cases where the file had not been received back. It was held that where the file had not been received back would not be held to be time-barred and such cases should be fixed before the court for appropriate Orders for non-prosecution or any order in terms of Order VII, Rule 11 of the Civil Procedure Code. It is also instructive to note that the LDA judgment which as aforesaid was of three learned Judges of this Court was distinguished on the ground that it pertained to a situation where the file had been taken back by the Counsel, meaning thereby that in the instant case where the file had been taken back, even according to *Sabiran Bi* *ibid*, the matter had to be decided in terms of the LDA case *ibid*, which holds that failure to remove the objections within the time fixed (*where the file had been received back*) renders the appeal to be time-barred if in the time period between the raising of objections and removal thereof the period of limitation expires."

12. In view of above discussion, both the Courts below have committed illegality by dismissing the application of the petitioners of Civil Revision No.364-D of 2010 for setting aside ex-parte proceedings and preliminary decree and appeals of petitioners in both Civil Revisions through the impugned judgments and decrees which are not sustainable. In these circumstances, both Civil Revisions are allowed, application of petitioners of Civil Revision No.364-D of 2010 for setting-aside ex-parte proceedings is **accepted**, impugned judgments and decrees including preliminary decree, ex-parte proceedings and report of local commission are hereby set-aside, suit of respondent No.1 is deemed to be pending in the learned Civil Court,

petitioners in Civil Revision No.364-D of 2010 are directed to submit their written statement on a date to be fixed by it after receiving this judgment and shall proceed in accordance with law and decide the lis expeditiously preferably within a period of one month from the date of submission of written statement. Record of the learned Civil Court and learned Appellate Court be sent back forthwith.

(SADAQAT ALI KHAN)
JUDGE

Approved for reporting.

JUDGE